THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
(*through web-based video conferencing platform*)

Item 43
CA(CAA) No. 45/Chd/Chd/2019
(1st Motion)
Under Section 230-232, CA 2013

In the matter of:-
Ashish Mohan Gupta …Applicant Company

And

Hind Motors Limited …Applicant Company

Present through Video Conferencing:
None for the applicant.
Mr. Kamal Satija, Advocate for Liquidator.

This is an application for an approval of proposal for arrangement under Sections 230-232 of the Companies Act, 2013 during the liquidation process of the respondent company. None has appeared on behalf of the applicant. The learned counsel for the liquidator has stated that the liquidation was initiated on 28.08.2017 and the same was challenged by the present applicant before the Hon'ble NCLAT, where it was dismissed. Appeal therefrom filed before the Hon'ble Supreme Court was also dismissed. Subsequently, the applicant-Ex Director came up with a proposal for arrangement under Section 230-232 of the Companies Act, 2013 before this Tribunal for an arrangement which was rejected vide an order dated 28.11.2019. This order was also challenged before the Hon'ble NCLAT and after dismissal was taken up before the Hon'ble Supreme court where the same was also dismissed.

It is contended by the learned counsel for the liquidator that the present application is also on the similar line. He is directed to give a detailed note enclosing judicial decisions within two weeks. One last opportunity is given to the

applicant to appear before this Bench. The learned counsel for the liquidator is directed to inform the next date of hearing to counsel opposite through email and place that copy of email along with affidavit on record so that effective proceedings can take place against the applicant on the next date of hearing.

Matter be listed on 14.10.2022.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

September, 15, 2022
SD